



Australian Centre for Disease Control Act 2025

No. 61, 2025

**An Act to establish the Australian Centre for
Disease Control, and for related purposes**

Note: An electronic version of this Act is available on the Federal Register of Legislation
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Australian Centre for Disease Control Act 2025

No. 61, 2025

An Act to establish the Australian Centre for Disease Control, and for related purposes

[Assented to 10 November 2025]

The Parliament of Australia enacts:

Section 1

Part 1—Preliminary

1 Short title

This Act is the *Australian Centre for Disease Control Act 2025*.

2 Commencement

- (1) Each provision of this Act specified in column 1 of the table commences, or is taken to have commenced, in accordance with column 2 of the table. Any other statement in column 2 has effect according to its terms.

Commencement information		
Column 1	Column 2	Column 3
Provisions	Commencement	Date/Details
1. The whole of this Act	1 January 2026.	1 January 2026

Note: This table relates only to the provisions of this Act as originally enacted. It will not be amended to deal with any later amendments of this Act.

- (2) Any information in column 3 of the table is not part of this Act. Information may be inserted in this column, or information in it may be edited, in any published version of this Act.

3 Simplified outline of this Act

This Act establishes:

- (a) the Australian Centre for Disease Control; and
- (b) the office of the Director-General of the Australian Centre for Disease Control; and
- (c) the Advisory Council of the Australian Centre for Disease Control.

The Director-General has a range of functions relating to public health, including:

- (a) providing advice to Ministers and government bodies on public health matters; and
- (b) providing advice to, and consulting with, international bodies on public health matters; and
- (c) gathering and analysing information relating to public health matters; and
- (d) providing information to prescribed public health entities; and
- (e) providing advice to, and consulting with, various other bodies on public health matters; and
- (f) developing, publishing and promoting standards, guidelines, public communications, reports and other material on public health matters; and
- (g) functions under other Acts, including the *Biosecurity Act 2015*, the *National Health Security Act 2007* and the *National Occupational Respiratory Disease Registry Act 2023*.

The Advisory Council's function is to advise the Director-General on public health matters and other matters.

The Centre's functions are to assist the Director-General and the Advisory Council.

Part 4 of this Act contains provisions about information, including powers for the Director-General and others to collect, use and disclose information. Generally, information may be collected, used and disclosed for the purposes of this Act despite other laws that would otherwise prevent this.

Part 4 also contains prohibitions on unauthorised use or disclosure of information.

Part 5 contains provisions about enforcement.

Part 6 contains miscellaneous provisions.

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4 Extension to external Territories

This Act extends to the external Territories.

5 Definitions

In this Act:

Aboriginal person has the same meaning as in the *Aboriginal and Torres Strait Islander Act 2005*.

Advisory Council means the Advisory Council of the Australian Centre for Disease Control established by section 26.

Advisory Council member: see subsection 28(1).

Agriculture Department means the Department administered by the Agriculture Minister.

Agriculture Minister means the Minister administering the *Primary Industries Levies and Charges Collection Act 2024*.

appointed member means an Advisory Council member appointed by the Minister under subsection 30(1).

Australian government entity means:

- (a) a Commonwealth entity; or
- (b) a State or Territory government entity.

Centre means the Australian Centre for Disease Control established by section 7.

civil penalty provision has the same meaning as in the Regulatory Powers Act.

Commonwealth entity has the same meaning as in the *Public Governance, Performance and Accountability Act 2013*.

data service has the same meaning as in the *Data Availability and Transparency Act 2022*.

data sharing declaration means a declaration made under subsection 67(1).

designated data service provider: see section 42.

designated secrecy law means the following:

- (a) the *Anti-Money Laundering and Counter-Terrorism Financing Act 2006*;
- (b) the *Australian Crime Commission Act 2002*;
- (c) the *Australian Federal Police Act 1979*;
- (d) the *Australian Security Intelligence Organisation Act 1979*;
- (e) the *Defence Act 1903*;
- (f) the *Intelligence Services Act 2001*;
- (g) the *National Security Information (Criminal and Civil Proceedings) Act 2004*;
- (h) the *Office of National Intelligence Act 2018*;
- (i) any other law, or provision of a law, of the Commonwealth, a State or a Territory that is prescribed by the rules.

Director-General means the Director-General of the Australian Centre for Disease Control appointed by the Minister under section 10.

disability has the same meaning as in the *Disability Discrimination Act 1992*.

enactment means:

- (a) an Act of the Commonwealth, a State or a Territory; or
- (b) an instrument (including rules, regulations and by-laws) made under an Act of the Commonwealth, a State or a Territory.

entrusted person means any of the following:

- (a) the Minister;
- (b) the Director-General;
- (c) any other Advisory Council member;
- (d) an APS employee in the Centre;
- (e) a member of an advisory board established by the Director-General under subsection 24(1) of the *Public Governance, Performance and Accountability Act 2013*;
- (f) an APS employee in the Department;

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- (g) a person employed or engaged by the Commonwealth to provide services to the Commonwealth in connection with the Department;
- (h) a person who is employed or engaged by a designated data service provider that has been engaged to provide data services to the Director-General, and who is performing duties related to the provision of those services;
- (i) a person engaged to assist the Centre.

exempt material: a document or other material is ***exempt material*** if:

- (a) the document or material is an exempt document under any of the following provisions of the *Freedom of Information Act 1982* (or would be such an exempt document if it were a document that was proposed to be released under that Act):
 - (i) section 33 (documents affecting national security, defence or international relations);
 - (ii) section 34 (Cabinet documents);
 - (iii) section 37 (documents affecting enforcement of law and protection of public safety);
 - (iv) section 38 (documents to which secrecy provisions of enactments apply), disregarding subsections (1A) to (3A) of that section;
 - (v) section 42 (documents subject to legal professional privilege);
 - (vi) section 45 (documents containing material obtained in confidence), disregarding subsection (2) of that section;
 - (vii) section 46 (documents disclosure of which would be contempt of Parliament or contempt of court);
 - (viii) section 47 (documents disclosing trade secrets or commercially valuable information), disregarding subsections (2) and (3) of that section; or
- (b) there is a risk that publishing the document or material could cause:
 - (i) physical harm, or threats of physical harm; or
 - (ii) social stigma; or
 - (iii) bullying; or

- (iv) vilification; or
- (v) other harm (other than commercial or economic harm); to an individual or group, and it is unreasonable to take that risk; or
- (c) publishing the document or material would infringe copyright (other than a copyright owned by the Commonwealth or a State or Territory), disregarding Division 2 of Part VII of the *Copyright Act 1968*.

foreign government body means:

- (a) the government of a foreign country or of part of a foreign country; or
- (b) an authority of the government of a foreign country; or
- (c) an authority of the government of part of a foreign country; or
- (d) a foreign local government body or foreign regional government body; or
- (e) a foreign public enterprise.

international organisation means any of the following:

- (a) a public international organisation;
- (b) a foreign government body;
- (c) an international partnership;
- (d) an organisation or body prescribed by the rules for the purposes of this paragraph.

international partnership means an organisation:

- (a) of which 2 or more countries, or the governments of 2 or more countries, are members; and
- (b) that also has members that are any of the following:
 - (i) civil society organisations;
 - (ii) companies;
 - (iii) individuals;
 - (iv) other kinds of entities not mentioned in paragraph (a) or in subparagraph (i) to (iii) of this paragraph.

paid work means work for financial gain or reward (whether as an employee, a self-employed person or otherwise).

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personal information has the same meaning as in the *Privacy Act 1988*.

person engaged to assist the Centre means a person (other than the Director-General, a member of the Advisory Council, a member of an advisory board established by the Director-General under subsection 24(1) of the *Public Governance, Performance and Accountability Act 2013* or an APS employee in the Centre) who is:

- (a) employed or engaged by the Commonwealth to provide services to the Commonwealth in connection with the Centre; or
- (b) employed or engaged (however described) by a person described in paragraph (a) to provide services in connection with the services mentioned in that paragraph.

prescribed public health activity: see section 40.

prescribed public health entity means an entity specified by the Director-General under subsection 41(1).

protected information means relevant information that:

- (a) is personal information about any person (including a deceased person); or
- (b) is information (including commercially sensitive information) the disclosure of which could reasonably be expected to found an action by an entity (other than the Commonwealth) for breach of a duty of confidence.

public health matters includes the following:

- (a) health emergency management;
- (b) health security;
- (c) health protection;
- (d) health promotion;
- (e) preventative health;
- (f) disease control;
- (g) environmental health;
- (h) the health effects of climate change.

public international organisation means:

- (a) an organisation:
 - (i) of which 2 or more countries, or the governments of 2 or more countries, are members; or
 - (ii) that is constituted by persons representing 2 or more countries, or representing the governments of 2 or more countries; or
- (b) an organisation established by, or a group of organisations constituted by:
 - (i) organisations of which 2 or more countries, or the governments of 2 or more countries, are members; or
 - (ii) organisations that are constituted by the representatives of 2 or more countries, or the governments of 2 or more countries; or
- (c) an organisation that is:
 - (i) an organ of, or office within, an organisation described in paragraph (a) or (b); or
 - (ii) a commission, council or other body established by an organisation so described or such an organ; or
 - (iii) a committee, or subcommittee of a committee, of an organisation described in paragraph (a) or (b), or of such an organ, council or body.

Regulatory Powers Act means the *Regulatory Powers (Standard Provisions) Act 2014*.

relevant information means:

- (a) information obtained or generated by a person in the course of or for the purposes of:
 - (i) performing functions or duties, or exercising powers, under this Act; or
 - (ii) assisting another person to perform functions or duties, or exercise powers, under this Act; and
- (b) information obtained or generated by the Director-General, a member of the Advisory Council, a member of an advisory board established by the Director-General under subsection 24(1) of the *Public Governance, Performance and*

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Accountability Act 2013 or an APS employee in the Centre in the course of or for the purposes of:

- (i) performing functions or duties, or exercising powers, under the *Biosecurity Act 2015*, the *National Health Security Act 2007* or the *National Occupational Respiratory Disease Registry Act 2023*; or
 - (ii) assisting another person to perform functions or duties, or exercise powers, under an Act mentioned in subparagraph (i); and
- (c) information obtained or generated by:
- (i) the Minister in the course of, or for the purposes of, performing functions or duties or exercising powers under the *National Health Security Act 2007* or the *National Occupational Respiratory Disease Registry Act 2023*; or
 - (ii) a person assisting the Minister to perform functions or duties, or exercise powers, under an Act mentioned in subparagraph (i); and
- (d) information obtained or generated by an APS employee in the Department, or a person otherwise employed or engaged by the Commonwealth to provide services to the Commonwealth in connection with the Department, in the course of or for the purposes of:
- (i) providing services to the Centre; or
 - (ii) assisting the National Focal Point (within the meaning of the *National Health Security Act 2007*) to perform its functions and duties or exercise its powers; or
 - (iii) otherwise assisting the Director-General to perform any of the Director-General's functions or duties, or exercise any of the Director-General's powers, under the *National Health Security Act 2007*; and
- (e) information obtained or generated by a person engaged to assist the Centre in the course of, or for the purposes of, assisting another person to perform functions or duties, or exercise powers, under the *Biosecurity Act 2015*, the *National Health Security Act 2007* or the *National Occupational Respiratory Disease Registry Act 2023*; and

- (f) information obtained or generated by a designated data service provider, or by a person employed or engaged by a designated data service provider, where the information is obtained or generated:
 - (i) as a result of a request or agreement under subsection 43(1), or a direction under subsection 45(1); or
 - (ii) in the course of providing data services to the Director-General; and
- (g) information obtained or generated by a person employed or engaged by a prescribed public health entity as a result of a disclosure under section 65 or a use or disclosure under section 66.

rules means rules made by the Minister under section 80.

State or Territory government entity means:

- (a) a Department of a State or Territory; or
- (b) a body (whether incorporated or not) established for a public purpose by or under a law of a State or Territory; or
- (c) an official of a State or Territory, or of an entity mentioned in paragraph (a) or (b).

Torres Strait Islander has the same meaning as in the *Aboriginal and Torres Strait Islander Act 2005*.

use, in relation to information, includes make a record of.

Part 2—The Australian Centre for Disease Control

Division 1—Introduction

6 Simplified outline of this Part

This Part establishes the Australian Centre for Disease Control and provides for administrative arrangements.

Division 3 establishes the office of the Director-General of the Australian Centre for Disease Control and confers functions and powers relating to public health matters on the Director-General.

Division 4 provides for the Centre to engage staff and consultants.

Divisions 5 and 6 contain transparency requirements. Division 5 requires the Director-General to publish public health advice given in the performance of the Director-General's functions, with some exceptions. Division 6 requires the Director-General to publish a register of agreements under which the Centre receives information or advice relating to public health matters.

Division 2—The Australian Centre for Disease Control

7 Establishment

- (1) The Australian Centre for Disease Control is established by this section.

Application of the finance law

- (2) For the purposes of the finance law (within the meaning of the *Public Governance, Performance and Accountability Act 2013*):
- (a) the Australian Centre for Disease Control is a listed entity; and
 - (b) the Director-General is the accountable authority of the Centre; and
 - (c) the following persons are officials of the Centre:
 - (i) the Director-General;
 - (ii) the staff referred to in section 18; and
 - (d) the purposes of the Centre include:
 - (i) the functions of the Centre referred to in section 9; and
 - (ii) the functions of the Director-General referred to in section 11.

8 Constitution of the Centre

The Centre consists of:

- (a) the Director-General; and
- (b) the staff of the Centre.

9 Functions of the Centre

- (1) The Centre has the following functions:
- (a) to assist the Director-General in the performance of the Director-General's functions and duties and the exercise of the Director-General's powers under:
 - (i) this Act; and
 - (ii) the *Biosecurity Act 2015*; and

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- (iii) the *National Health Security Act 2007*; and
 - (iv) the *National Occupational Respiratory Disease Registry Act 2023*;
 - (b) to assist the Advisory Council in the performance of the Advisory Council's functions.
- (2) The assistance that may be provided under paragraph (1)(b) includes the making available of resources and facilities (including secretariat services and clerical assistance).

Division 3—The Director-General of the Australian Centre for Disease Control

10 Establishment and appointment

- (1) There is to be a Director-General of the Australian Centre for Disease Control.

Appointment by Minister

- (2) The Director-General is to be appointed by the Minister, by written instrument.
- (3) The Minister must not appoint a person as the Director-General unless satisfied that the person has appropriate expertise, qualifications or experience in public health matters.

Period of appointment

- (4) The Director-General holds office for a period of 5 years unless a shorter period is specified in the instrument of appointment.

Note: The Director-General may be reappointed: see section 33AA of the *Acts Interpretation Act 1901*.

11 Functions of the Director-General

The Director-General has the following functions:

- (a) providing advice on public health matters to the Minister at the request of the Minister or on the Director-General's own initiative;
- (b) providing advice on public health matters to another Minister:
 - (i) at the request of the Minister, or the other Minister; or
 - (ii) on the Director-General's own initiative;
- (c) providing advice to, and consulting with, Commonwealth entities on public health matters;
- (d) providing advice to, and consulting with, State or Territory government entities on public health matters;

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- (e) providing advice to, and consulting with, international organisations on public health matters;
- (f) gathering and analysing information relating to public health matters;
- (g) providing information gathered as mentioned in paragraph (f), and information produced as a result of the analysis mentioned in that paragraph, to prescribed public health entities to assist those entities to carry out prescribed public health activities;
- (h) providing advice to, and consulting with, any of the following on public health matters:
 - (i) bodies representing health care professionals;
 - (ii) bodies representing public health professionals;
 - (iii) bodies representing the interests of consumers of health care;
 - (iv) bodies representing the interests of people with particular diseases;
 - (v) bodies whose objects include the prevention or management of particular diseases;
 - (vi) bodies representing Aboriginal persons or Torres Strait Islanders (or both);
 - (vii) bodies known as Aboriginal and/or Torres Strait Islander Community-Controlled Organisations;
 - (viii) bodies whose objects include the prevention and management of occupational exposures and injuries;
 - (viii) bodies whose objects include the prevention and control of infection;
 - (viic) bodies representing people with disability;
 - (viid) bodies whose objects include research into, and the management of, the health needs of people with disability;
 - (viii) bodies representing the interests of particular groups of people in relation to public health matters;
 - (ix) any other person or body that the Director-General thinks appropriate;
- (i) developing, publishing and promoting:

- (i) specialised statistical standards and classifications relevant to public health matters; and
- (ii) guidelines and statements on public health matters; and
- (iii) public communications and advice on public health matters; and
- (iv) reports, information and papers on public health matters;
- (j) conducting, promoting, and supporting community awareness initiatives and educational campaigns on public health matters;
- (ja) promoting research in relation to public health matters, including by:
 - (i) developing and maintaining close relationships with key public health research entities; and
 - (ii) providing advice to research funding entities on research priorities for public health matters;
- (jb) promoting public health workforce expertise;
- (k) any other functions relating to public health matters that are set out in the rules;
- (l) any other functions conferred on the Director-General by another law of the Commonwealth;
- (m) to do anything incidental or conducive to the performance of any of the Director-General's other functions.

12 Objectives

- (1) It is the intention of the Parliament that the Director-General, in performing the Director-General's functions under paragraphs 11(a) to (jb), must have regard to:
 - (a) the need to base public health advice on data and other forms of evidence; and
 - (b) the need for public trust in public health advice; and
 - (c) the need for transparency in the performance of these functions; and
 - (d) the impacts of risks to public health, and the impacts of responses to risks to public health, on particular communities and population groups.

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- (2) Subsection (1) does not create rights or duties that are enforceable by proceedings in a court or tribunal.
- (3) A failure to comply with subsection (1) does not affect the validity of anything done in the performance of the Director-General's functions, and is not a ground for the review or challenge of any decision.

13 Powers of the Director-General

Necessary or convenient power

- (1) The Director-General has power to do all things necessary or convenient to be done for, or in connection with, the performance of the Director-General's functions and duties.

Entering into agreements

- (2) Without limiting the generality of subsection (1), the Director-General may, on behalf of the Commonwealth, enter into an agreement with any of the following if the agreement relates to the functions, duties or powers of the Director-General or the Centre:
 - (a) a State;
 - (b) a Territory;
 - (c) a State or Territory government entity.

Entering into arrangements

- (3) Without limiting the generality of subsection (1), the Director-General may, on behalf of the Centre, enter into an arrangement with any of the following if the arrangement relates to the functions, duties or powers of the Director-General or the Centre:
 - (a) a foreign government body;
 - (b) an international organisation;
 - (c) an international partnership.

14 Acting appointments

The Minister may, by written instrument, appoint a person to act as the Director-General:

- (a) during a vacancy in the office of the Director-General (whether or not an appointment has previously been made to the office); or
- (b) during any period, or during all periods, when the Director-General:
 - (i) is absent from duty or from Australia; or
 - (ii) is, for any reason, unable to perform the duties of the office.

Note: For rules that apply to acting appointments, see sections 33AB and 33A of the *Acts Interpretation Act 1901*.

15 Remuneration and conditions of appointment

Remuneration and allowances

- (1) The Director-General is to be paid the remuneration that is determined by the Remuneration Tribunal. If no determination of that remuneration by the Tribunal is in operation, the Director-General is to be paid the remuneration that is prescribed in the rules for the purposes of this subsection.
- (2) The Director-General is to be paid the allowances that are prescribed in the rules.

Leave of absence

- (3) The Director-General has the recreation leave entitlements that are determined by the Remuneration Tribunal.
- (4) The Minister may grant the Director-General leave of absence, other than recreation leave, on the terms and conditions as to remuneration or otherwise that the Minister determines.
- (5) This section has effect subject to the *Remuneration Tribunal Act 1973*.

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Other work

- (6) The Director-General must not engage in paid work outside the duties of the Director-General's office without the Minister's written approval.

Other terms and conditions

- (7) The Director-General holds office on the terms and conditions (if any) in relation to matters not covered by this Act that are determined by the Minister.

16 Resignation

- (1) The Director-General may resign the Director-General's appointment by giving the Minister a written resignation.
- (2) The resignation takes effect on a day agreed by the Director-General and the Minister.
- (3) If the Director-General and the Minister do not agree on a day for the purposes of subsection (2), the resignation takes effect the day after the end of the period of 28 days that begins the day the resignation is received by the Minister.

17 Termination of appointment

- (1) The Minister may terminate the appointment of the Director-General:
 - (a) for misbehaviour; or
 - (b) if the Director-General is unable to perform the duties of the Director-General's office because of physical or mental incapacity.
- (2) The Minister may terminate the appointment of the Director-General if:
 - (a) the Director-General:
 - (i) becomes bankrupt; or
 - (ii) applies to take the benefit of any law for the relief of bankrupt or insolvent debtors; or

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- (iii) compounds with the Director-General's creditors; or
- (iv) makes an assignment of the Director-General's remuneration for the benefit of the Director-General's creditors; or
- (b) the Director-General is absent, except on leave of absence, for 14 consecutive days or for 28 days in any 12 months; or
- (c) the Director-General engages, except with the Minister's approval, in paid work outside the duties of the Director-General's office (see subsection 15(6)).

Note: The appointment of the Director-General may also be terminated under section 30 of the *Public Governance, Performance and Accountability Act 2013* (which deals with terminating the appointment of an accountable authority, or a member of an accountable authority, for contravening general duties of officials).

Division 4—Staff and consultants

18 Staff

- (1) The staff of the Centre must be persons engaged under the *Public Service Act 1999*.
- (2) For the purposes of the *Public Service Act 1999*:
 - (a) the Director-General and the staff of the Centre together constitute a Statutory Agency; and
 - (b) the Director-General is the Head of that Statutory Agency.

19 Consultants

The Director-General may, on behalf of the Commonwealth, engage consultants to assist in the performance of the functions or duties, or the exercise of the powers, of one or more of the following:

- (a) the Centre;
- (b) the Director-General;
- (c) the Advisory Council.

Division 5—Publication of public health advice

20 Advice to which this Division applies

This Division applies to advice (however described):

- (a) that consists of or contains recommendations (however described); and
- (b) that is given by the Director-General, in the performance of the Director-General's functions or duties under this Act or any other law of the Commonwealth, to any of the following:
 - (i) a Minister;
 - (ii) a Commonwealth entity, or an official of the Commonwealth;
 - (iii) a State or Territory or a State or Territory government entity; and
- (c) that relates to public health matters; and
- (d) that is given in writing; and
- (e) that was not prepared for the purpose of being published otherwise than under this Division; and
- (f) that the Director-General approves as the Director-General's final and settled advice.

21 Publication of public health advice

- (1) The Director-General must cause the advice to be published on the Centre's website no later than 30 days after the Director-General approves the advice as mentioned in paragraph 20(f).

Note: For exemptions from the requirement to publish the advice, see section 22.

- (2) Subject to this Division, the published advice must include any supporting information, analysis or reasoning that was used to reach the recommendations in the advice.
- (3) If the advice, including any material mentioned in subsection (2), is a part (the **relevant part**) of a document that also contains other material, subsection (1) applies only to the relevant part.

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- (4) The Director-General may extend the 30-day period mentioned in subsection (1) if the Director-General is satisfied that there are exceptional circumstances that make it reasonable to extend the period.
- (5) The period may be extended more than once.
- (6) If the Director-General extends the period under subsection (4), the reasons for the extension must be published with the advice.
- (7) The annual report prepared by the Director-General and given to the Minister under section 46 of the *Public Governance, Performance and Accountability Act 2013* for a period must include the reasons for any extensions under subsection (4) of this section that the Director-General makes during that period.

22 Public health advice that is exempt material

- (1) The Director-General must not publish advice under section 21 if the Director-General is satisfied that the advice is exempt material.

Note: For *exempt material*, see section 5.

- (2) However, if the Director-General is satisfied that:
 - (a) the advice is exempt material; but
 - (b) it is possible for the Director-General to prepare a copy of the advice, modified by deletions, that would not be exempt material;the Director-General must:
 - (c) prepare a modified copy of the advice as mentioned in paragraph (b); and
 - (d) cause the modified copy to be published under section 21.

Annual report must include reasons for exemption

- (3) The annual report prepared by the Director-General and given to the Minister under section 46 of the *Public Governance, Performance and Accountability Act 2013* for a period must, for any advice that was not published, or was published in modified form, under section 21 because of this section during the period,

include the reasons why the advice was not published, or was published in modified form.

- (4) For the purposes of subsection (3), it is sufficient for the annual report to specify the subparagraph or subparagraphs of paragraph (a) or (b) of the definition of *exempt material* in section 5 of this Act that applied to the advice, or that paragraph (c) of that definition applied.

23 Rules may make provision about publication of public health advice

- (1) The rules may make provision in relation to the publication of advice under section 21.
- (2) Without limiting subsection (1), rules made for the purposes of that subsection may do any of the following:
- (a) provide that advice may only be published under section 21 after the end of a specified period after the advice was given (which must not be longer than the 30-day period mentioned in subsection 21(1));
 - (b) require the Director-General to inform a recipient of advice that the advice is proposed to be published under section 21;
 - (c) provide for consultation that the Director-General must carry out before publishing advice under section 21;
 - (d) provide for and in relation to procedures for publishing advice under section 21.

Division 6—Register of public health agreements

24 Register of public health agreements

- (1) The Director-General must cause a register of public health agreements to be published on the Centre's website.
- (2) A **public health agreement** is a written agreement between the Centre and one or more other entities, at least one of which is not an Australian government entity, under which the Centre receives information or advice in relation to public health matters.
- (3) The rules may prescribe other kinds of arrangements involving the Centre that are **public health agreements**.
- (4) The register must include the name of each party to a public health agreement.
- (5) Without limiting the information that may be included in the register, the register may include:
 - (a) information about the expertise of a party to a public health agreement; and
 - (b) the reason for entering into a public health agreement.

Part 3—The Advisory Council of the Australian Centre for Disease Control

Division 1—Introduction

25 Simplified outline of this Part

This Part establishes the Advisory Council of the Australian Centre for Disease Control. The Advisory Council's function is to provide advice to the Director-General on public health matters and other matters.

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Division 2—Establishment and function of the Advisory Council

26 Establishment of the Advisory Council of the Australian Centre for Disease Control

The Advisory Council of the Australian Centre for Disease Control is established by this section.

27 Function of the Advisory Council

- (1) The function of the Advisory Council is to provide advice to the Director-General on the following:
 - (a) public health matters;
 - (b) the Centre's strategic direction and priorities;
 - (c) any matter that will assist the performance of the Director-General's functions or duties or the exercise of the Director-General's powers under:
 - (i) this Act; or
 - (ii) the *Biosecurity Act 2015*; or
 - (iii) the *National Health Security Act 2007*; or
 - (iv) the *National Occupational Respiratory Disease Registry Act 2023*;
 - (d) any other matter on which the Director-General requests, in writing, the Advisory Council to provide advice.
- (2) A request under paragraph (1)(d) is not a legislative instrument.

Division 3—Membership of the Advisory Council

28 Membership of the Advisory Council

- (1) The Advisory Council consists of the following people, each of whom is an *Advisory Council member*:
 - (a) the Chair;
 - (b) the Commonwealth Chief Medical Officer;
 - (c) at least 6, but not more than 10, appointed members.
- (2) The Commonwealth Chief Medical Officer and the appointed members are not officials of the Centre for the purposes of the *Public Governance, Performance and Accountability Act 2013*.

29 Chair of the Advisory Council

The Director-General is the Chair of the Advisory Council.

30 Appointment of Advisory Council members

- (1) Each Advisory Council member (other than the Director-General and the Commonwealth Chief Medical Officer) is to be appointed by the Minister by written instrument, on a part-time basis.

Note: An appointed member may be reappointed: see section 33AA of the *Acts Interpretation Act 1901*.
- (2) An appointed member holds office for the period specified in the instrument of appointment. The period must not exceed 3 years.
- (3) The Minister must ensure that at least one appointed member is an Aboriginal person or a Torres Strait Islander (or both) who has expertise, qualifications or experience in the health needs of Aboriginal persons or Torres Strait Islanders (or both).
- (3A) The Minister must ensure that at least one appointed member is a person with a disability who has expertise, qualifications or experience in the health needs of people with disability.

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Considerations for appointment

- (4) A person is not eligible for appointment as an appointed member unless the Minister is satisfied that the person has substantial expertise, qualifications or experience in at least one of the following fields:
- (a) public health matters;
 - (b) clinical practice;
 - (c) economics;
 - (d) human rights;
 - (e) data and statistics relating to public health matters;
 - (f) emergency management;
 - (g) communications;
 - (h) any other field that the Minister considers appropriate.

31 Publication of members of the Advisory Council

- (1) The Director-General must cause a list of all members of the Advisory Council to be published on the Centre's website:
- (2) The rules may require or permit specified information (which may include personal information) about a member to be included in the list.

Division 4—Administration

32 Remuneration and allowances

- (1) An appointed member of the Advisory Council is to be paid the remuneration that is determined by the Remuneration Tribunal. If no determination of that remuneration by the Tribunal is in operation, the member is to be paid the remuneration that is prescribed by the rules.
- (2) An appointed member of the Advisory Council is to be paid the allowances that are prescribed by the rules.
- (3) This section has effect subject to the *Remuneration Tribunal Act 1973*.

33 Leave

The Director-General may grant leave of absence to any appointed member on the terms and conditions that the Director-General determines.

34 Disclosure of interests to the Director-General—members other than Director-General

- (1) A member of the Advisory Council (other than the Director-General) must give written notice to the Director-General of all interests, pecuniary or otherwise, that the member has or acquires and that conflict or could conflict with the proper performance of the member's duties.
- (2) The disclosure must be made as soon as possible after the relevant facts have come to the member's knowledge.

35 Disclosure of interests to the Advisory Council—all members

- (1) A member who has an interest, pecuniary or otherwise, in a matter being considered or about to be considered by the Advisory

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Council must disclose the nature of the interest to a meeting of the Advisory Council.

- (2) The disclosure must be made as soon as possible after the relevant facts have come to the member's knowledge.
- (3) The disclosure must be recorded in the minutes of the meeting.
- (4) Unless the Advisory Council otherwise determines, the member must not be present during any deliberation by the Advisory Council on the matter.
- (5) For the purposes of making a determination under subsection (4), the member:
 - (a) must not be present during any deliberation of the Advisory Council for the purpose of making the determination; and
 - (b) must not take part in making the determination.
- (6) A determination under subsection (4) must be recorded in the minutes of the meeting of the Advisory Council.

36 Resignation

- (1) An appointed member may resign the member's appointment by giving the Minister a written resignation.
- (2) The resignation takes effect on the day it is received by the Minister or, if a later day is specified in the resignation, on that later day.

37 Termination

- (1) The Minister may terminate the appointment of an appointed member:
 - (a) for misbehaviour; or
 - (b) if the appointed member is unable to perform the duties of the member's office because of physical or mental incapacity.
- (2) The Minister may terminate the appointment of an appointed member if:

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- (a) the member:
 - (i) becomes bankrupt; or
 - (ii) applies to take the benefit of any law for the relief of bankrupt or insolvent debtors; or
 - (iii) compounds with the member's creditors; or
 - (iv) makes an assignment of the member's remuneration for the benefit of the member's creditors; or
- (b) the member is absent, except on leave of absence, for 3 consecutive meetings of the Advisory Council; or
- (c) the member fails, without reasonable excuse, to comply with section 34.

Division 5—Operation of the Advisory Council

38 Meetings of the Advisory Council

Holding meetings

- (1) The Chair of the Advisory Council:
 - (a) must convene at least 2 meetings each calendar year; and
 - (b) may convene such other meetings as are necessary for the efficient performance of the Advisory Council's functions.

Procedure of meetings

- (2) Subject to this section, the Chair may, in writing, determine matters relating to the operation of the Advisory Council.
- (3) Subject to this section, if no determination is in force under subsection (2) the Advisory Council may operate in the way it determines.
- (4) The Chair must ensure that minutes of meetings are kept.

Meeting to be held in private

- (5) Subject to subsection (6), meetings are to be held in private.

Attendance by others

- (6) The Chair may invite a person to attend a meeting for the purpose of advising or informing the Advisory Council on any matter.

Publication of summary

- (7) As soon as practicable after a meeting, the Director-General must cause to be published on the Centre's website a summary of any advice, or recommendations, relating to public health matters that the Advisory Council adopted during the meeting.
- (8) The Director-General must take reasonable steps to ensure that the summary does not include exempt material.

Determination not a legislative instrument.

- (9) A determination made under subsection (2) is not a legislative instrument.

Part 4—Information

Division 1—Introduction

39 Simplified outline of this Part

This Part contains provisions about how the Centre and other entities may collect, use and disclose information.

Division 2 contains 2 main kinds of information-gathering powers.

First, the Director-General may request information from other entities, and enter into agreements for other entities to give information. Compliance with a request or agreement is voluntary. An entity may comply with a request or agreement despite any other law, other than designated secrecy laws.

Second, the Director-General may direct persons to give information. A recipient of a direction must comply with the direction, and may be liable for a civil penalty if they do not. As with requests and agreements, other laws do not prevent compliance with a direction (except for designated secrecy laws). The Director-General must cause a register of directions to be published on the Centre's website.

Division 3 contains various authorisations for the Director-General and other people to collect, use and disclose information.

Division 4 prohibits the unauthorised use or disclosure of protected information.

Division 5 contains miscellaneous provisions, including a provision protecting people from liability for collecting, using or disclosing information in accordance with this Part.

40 Prescribed public health activities

- (1) In this Act, each of the following is a ***prescribed public health activity***:
 - (a) public health surveillance and monitoring carried out by, or on behalf of, the Commonwealth or a State or Territory;
 - (b) planning for, designing, implementing and evaluating programs, interventions, policies and strategies that:
 - (i) relate to public health matters; and
 - (ii) are administered by, or on behalf of, the Commonwealth or a State or Territory;
 - (c) producing, analysing and reporting on statistics related to public health matters for, or on behalf of, the Commonwealth or a State or Territory;
 - (d) any other activity specified by the Director-General under subsection (2).
- (2) For the purposes of paragraph (1)(d), the Director-General may, by legislative instrument, specify other activities that are ***prescribed public health activities***.
- (3) The Director-General may specify an activity under subsection (2) only if the activity relates to the protection or promotion of public health.

41 Prescribed public health entities

- (1) The Director-General may, by legislative instrument, specify entities that are ***prescribed public health entities*** for the purposes of this Act.
- (2) The Director-General may specify an entity under subsection (1) only if the Director-General is satisfied that:
 - (a) the entity:
 - (i) has functions, duties or powers, under a law of the Commonwealth or a State or Territory, relating to prescribed public health activities; or
 - (ii) carries out prescribed public health activities on behalf of the Commonwealth or a State or Territory; and

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- (b) specifying the entity would be consistent with any trusted access principles made under subsection (5).
- (3) Also, the Director-General may specify an entity under subsection (1) only if the Director-General is satisfied that:
 - (a) the entity is an APP entity (within the meaning of the *Privacy Act 1988*); or
 - (b) if paragraph (a) does not apply—the entity is subject to a law of a State or Territory that substantially corresponds to the *Privacy Act 1988*; or
 - (c) if neither paragraph (a) nor (b) applies—the entity has entered into an agreement under subsection (4).
- (4) For the purposes of paragraph (3)(c), the Director-General may enter into a written agreement with an entity that prohibits the entity from collecting, holding, using or disclosing personal information in any way that would, if the entity were an organisation within the meaning of the *Privacy Act 1988*, breach an Australian Privacy Principle.
- (5) The Director-General may, by legislative instrument, determine trusted access principles for the purposes of paragraph (2)(b).

42 Designated data service provider

- (1) In this Act, each of the following is a ***designated data service provider***:
 - (a) the Australian Bureau of Statistics;
 - (b) the Australian Institute of Health and Welfare;
 - (c) any other Australian government entity determined by the Director-General under subsection (2).
- (2) The Director-General may, by legislative instrument, determine for the purposes of paragraph (1)(c) that an Australian government entity is an ***designated data service provider***.

Division 2—Information-gathering powers

Subdivision A—Request or agreement to give information

43 Request or agreement to give information

- (1) The Director-General may:
 - (a) request, in writing, that an entity give specified information to the Director-General or a designated data service provider;
or
 - (b) enter into an agreement, in writing, with an entity for the entity to give specified information to the Director-General or a designated data service provider.

Note: For specification by class, see subsection 33(3AB) of the *Acts Interpretation Act 1901*.

- (2) Without limiting subsection (1):
 - (a) the kinds of entities that a request may be given to, or an agreement may be entered into with, include the following:
 - (i) Australian government entities;
 - (ii) bodies corporate;
 - (iii) international organisations;
 - (iv) individuals; and
 - (b) a request or agreement may be for the entity to give a specified class of information from time to time.
- (3) The Director-General may specify information, or a class of information, in a request or agreement under subsection (1) only if the Director-General is satisfied that the information, or information in the class of information, would assist the Director-General in the performance of the Director-General's functions or duties, or the exercise of the Director-General's powers, under any of the following:
 - (a) this Act;
 - (b) the *Biosecurity Act 2015*;
 - (c) the *National Health Security Act 2007*;

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- (d) the *National Occupational Respiratory Disease Registry Act 2023*.

44 Request or agreement may be complied with despite other laws

- (1) An entity that is given a request under paragraph 43(1)(a), and any other entity dealing with the request on behalf of the entity, may give the information specified in the request in accordance with the request.
- (2) An entity that is a party to an agreement under paragraph 43(1)(b), and any other entity engaged in giving effect to the agreement on behalf of the entity, may give the information specified in the agreement in accordance with the agreement.
- (3) Subsections (1) and (2) have effect despite:
 - (a) any other written law of the Commonwealth or a State or Territory, whether enacted before or after the commencement of this Act; and
 - (b) any unwritten law of the Commonwealth or a State or Territory.
- (4) Despite subsection (3), subsections (1) and (2) are subject to the designated secrecy laws.

Subdivision B—Direction to give information

45 Director-General may direct person to give information

- (1) The Director-General may, in writing, direct a person (other than a person mentioned in subsection (5)) to give specified information to the Director-General or a designated data service provider.

Note: For specification by class, see subsection 33(3AB) of the *Acts Interpretation Act 1901*.

- (2) The direction:
 - (a) must specify the form in which the information is to be given; and
 - (b) may:

- (i) require the specified information to be given on or before a specified day; or
 - (ii) require information of a specified class to be given periodically, at a specified frequency, until the end of a specified period.
- (3) The day specified in a direction as mentioned in subparagraph (2)(b)(i), or the first day on which information must be given under a direction as mentioned in subparagraph (2)(b)(ii), must be least 14 days after the direction is given.
- (4) The Director-General may specify information, or a class of information, in a direction only if the Director-General is satisfied that:
 - (a) the information, or information in the class, is reasonably necessary for the performance of the Director-General's functions or duties under this Act; and
 - (b) it is reasonable in all the circumstances for the Director-General to give the direction; and
 - (c) the Director-General has consulted the Advisory Council about the proposed direction.

Persons not subject to direction

- (5) The Director-General must not give a direction under subsection (1) to any of the following:
 - (a) an Australian government entity;
 - (b) an international organisation;
 - (c) an individual employed or engaged by the Commonwealth, a State, a Territory or an entity mentioned in paragraph (a) or (b).

46 Recipient of direction must comply despite other laws

- (1) A person that is given a direction under subsection 45(1) must comply with the direction.
- (2) An entity dealing with the direction on behalf of the person may comply with the direction.

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- (3) Subsections (1) and (2) have effect despite:
 - (a) any other written law of the Commonwealth or a State or Territory, whether enacted before or after the commencement of this Act; and
 - (b) any unwritten law of the Commonwealth or a State or Territory.
- (4) Despite subsection (3), subsections (1) and (2) are subject to the designated secrecy laws.

47 Review of decision to give direction

Applications may be made to the Administrative Review Tribunal for review of decisions of the Director-General under subsection 45(1) to give directions under that subsection.

48 Civil penalty for failure to comply with direction

A person is liable to a civil penalty if:

- (a) the person is given a direction under subsection 45(1) that requires the person to give information, or information in a class of information, to the Director-General; and
- (b) the person has the information; and
- (c) the person fails to comply with the direction.

Note: This section is a continuing civil penalty provision under section 93 of the Regulatory Powers Act.

Civil penalty: 60 penalty units.

49 Register of directions

- (1) The Director-General must cause to be published on the Centre's website a register of directions given under subsection 45(1).
- (2) The register must include:
 - (a) for each direction:
 - (i) the reason the direction was given; and
 - (ii) any other information prescribed by the rules; and
 - (b) any other information prescribed by the rules.

- (3) Without limiting subparagraph (2)(a)(ii) or paragraph (2)(b), the rules may:
 - (a) require the register to include information relating to the recipients of directions; and
 - (b) provide for the form in which the register must be published; and
 - (c) provide for circumstances in which directions may be removed from the register.
- (4) Despite anything else in this section, the Director-General must take reasonable steps to ensure that the register does not include exempt material.

Division 3—Authorised collection, use and disclosure of relevant information

50 Purpose and effect of this Division

- (1) This Division sets out various authorisations for the use and disclosure of relevant information and other information.

Note 1: The authorisations in this Division generally apply to protected information (which is a kind of relevant information). For offences that apply to unauthorised use and disclosure of protected information, see Division 4.

Note 2: A provision of this Division constitutes an authorisation for the purposes of the *Privacy Act 1988* and other laws (including the common law).

Note 3: Use, in relation to information, includes make a record of (see the definition of *use* in section 5).

- (2) An authorisation in this Division does not limit any other authorisation in this Division.

51 Authorisation—functions, duties and powers under this Act and certain other Acts

- (1) A person (the *discloser*) may use or disclose relevant information in the course of or for the purpose of:

- (a) performing a function or duty, or exercising a power, under or in connection with any of the following:

- (i) this Act;
- (ii) the *National Health Security Act 2007*;
- (iii) the *National Occupational Respiratory Disease Registry Act 2023*; or

- (b) assisting another person to perform a function or duty, or exercise a power, under or in connection with an Act mentioned in paragraph (a).

- (2) The disclosure may include protected information if the person to whom the disclosure is made is:

- (a) an entrusted person, other than a person mentioned in paragraph (h) (persons employed or engaged by designated data service providers) of the definition of *entrusted person* in section 5; or
 - (b) a person specified by the rules.
- (3) If subsection (2) does not apply, the disclosure may include protected information only if the discloser is satisfied that:
 - (a) the disclosure of protected information is necessary for the discloser to:
 - (i) perform a function or duty, or exercise a power, under or in connection with an Act mentioned in paragraph (1)(a); or
 - (ii) assist another person to perform a function or duty, or exercise a power, under or in connection with an Act mentioned in paragraph (1)(a); and
 - (b) only the minimum amount of protected information necessary for that purpose is disclosed; and
 - (c) the disclosure is made only to such recipients as are necessary for that purpose.
- (4) This section does not apply in relation to the function mentioned in paragraph 11(g) (providing information to prescribed public health entities).

Note: For disclosure to prescribed public health entities, see section 65.

52 Authorisation—functions, duties and powers under the *Biosecurity Act 2015*

- (1) A person (the *discloser*) may use or disclose relevant information in the course of or for the purpose of:
 - (a) performing a function or duty, or exercising a power, under or in connection with the *Biosecurity Act 2015*; or
 - (b) assisting another person to perform a function or duty, or exercise a power, under or in connection with the *Biosecurity Act 2015*.
- (2) The disclosure may include protected information if the person to whom the disclosure is made is:

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- (a) an entrusted person, other than a person mentioned in paragraph (h) (persons employed or engaged by designated data service providers) of the definition of *entrusted person* in section 5; or
 - (b) an APS employee in the Agriculture Department; or
 - (c) a person employed or engaged by the Commonwealth to provide services to the Commonwealth in connection with the Agriculture Department; or
 - (d) a person specified by the rules.
- (3) If subsection (2) does not apply, the disclosure may include protected information only if the discloser is satisfied that:
 - (a) the disclosure of protected information is necessary for the discloser to:
 - (i) perform a function or duty, or exercise a power, under or in connection with the *Biosecurity Act 2015*; or
 - (ii) assist another person to perform a function or duty, or exercise a power, under or in connection with the *Biosecurity Act 2015*; and
 - (b) only the minimum amount of protected information necessary for that purpose is disclosed; and
 - (c) the disclosure is made only to such recipients as are necessary for that purpose.

53 Authorisation—disclosure in the public interest

- (1) The Director-General may disclose relevant information.
- (2) However, the Director-General may only disclose protected information under subsection (1) if the Director-General certifies that:
 - (a) it is in the public interest to do so; and
 - (b) the purpose of the disclosure could not be achieved without disclosing the protected information.
- (3) If a certificate under subsection (2) is made or given in writing, the certificate is not a legislative instrument.

Rules may prescribe guidelines for certificates

- (4) The rules may prescribe guidelines for the exercise of the Director-General's power to give certificates under subsection (2).
- (5) In deciding whether to give a certificate under subsection (2), the Director-General must act in accordance with guidelines (if any) prescribed for the purposes of subsection (4).

54 Authorisation—data service providers

- (1) The Director-General may disclose relevant information to a designated data service provider for the purpose of obtaining data services, from the data service provider, to assist the Director-General in the performance of the Director-General's functions or duties or the exercise of the Director-General's powers under any of the following:
 - (a) this Act;
 - (b) the *Biosecurity Act 2015*;
 - (c) the *National Health Security Act 2007*;
 - (d) the *National Occupational Respiratory Disease Registry Act 2023*.
- (2) A designated data service provider, or a person employed or engaged by a designated data service provider, may:
 - (a) use and disclose relevant information for the purpose of providing data services to the Director-General; and
 - (b) disclose to the Director-General any information obtained or generated in the course of providing data services to the Director-General; and
 - (c) use or disclose any information held by the designated data service provider, where the use or disclosure is for the purpose of providing data services to the Director-General to assist the Director-General in the performance of the Director-General's functions or duties or the exercise of the Director-General's powers under any of the following:
 - (i) this Act;
 - (ii) the *Biosecurity Act 2015*;
 - (iii) the *National Health Security Act 2007*;

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- (iv) the *National Occupational Respiratory Disease Registry Act 2023*; and
- (d) disclose to the Director-General any information given to the designated data service provider in accordance with a request or agreement under subsection 43(1) or a direction under subsection 45(1).

Note: See also subsection 65(2) (about disclosure by a designated data service provider to a prescribed public health entity).

- (3) To avoid doubt, a reference to information in paragraph (2)(b), (c) or (d) includes information that is not relevant information.

55 Authorisation—disclosure to Australian Bureau of Statistics and Australian Institute of Health and Welfare

- (1) The Director-General may disclose relevant information to the Australian Bureau of Statistics if the Director-General is satisfied that the information is relevant to the Bureau's functions.
- (2) The Director-General may disclose relevant information to the Australian Institute of Health and Welfare if the Director-General is satisfied that the information is relevant to the Institute's functions.

56 Authorisation—disclosure to oversight or integrity agency

- (1) The Director-General may disclose relevant information if:
 - (a) the disclosure is to any of the following:
 - (i) the Inspector-General of Intelligence and Security, or a person covered by subsection 32(1) of the *Inspector-General of Intelligence and Security Act 1986*;
 - (ii) the Commonwealth Ombudsman, or another officer within the meaning of subsection 35(1) of the *Ombudsman Act 1976*;
 - (iii) the Australian Information Commissioner, a member of the staff of the Office of the Australian Information Commissioner, or a consultant engaged under the *Australian Information Commissioner Act 2010*;

- (iv) the National Anti-Corruption Commissioner or another staff member of the NACC (within the meaning of the *National Anti-Corruption Commission Act 2022*);
 - (v) the Inspector of the National Anti-Corruption Commission or a person assisting the Inspector (within the meaning of the *National Anti-Corruption Commission Act 2022*); and
 - (b) the disclosure is for the purpose of that person performing a function or duty or exercising a power.
- (2) To avoid doubt, this section does not limit any provision of an Act mentioned in subsection (1).

57 Authorisation—obtaining legal advice

A person may disclose relevant information for the purpose of obtaining legal advice.

58 Authorisation—disclosure to court, tribunal etc.

- (1) A person may disclose relevant information to a court exercising federal jurisdiction.
- (2) A person may disclose relevant information to:
- (a) a court; or
 - (b) a tribunal, authority or person that has the power to require the answering of questions or the production of documents;
- for the purposes of the enforcement of a law of the Commonwealth or to assist the court, tribunal, authority or person to make or review an administrative decision that is required or authorised to be made under a law of the Commonwealth.

59 Authorisation—use or disclosure under another law

A person may use or disclose relevant information if the use or disclosure is required or authorised under a law of the Commonwealth other than this Act.

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60 Authorisation—disclosure to entity that provided information

A person may disclose relevant information to the entity that provided the information.

61 Authorisation—disclosure to entity to which information relates

A person may disclose relevant information to the entity to which the information relates.

62 Authorisation—information already publicly available

A person may use or disclose relevant information if the information has already been lawfully made available to the public.

63 Authorisation—threats to safety, health or wellbeing

A person may use or disclose relevant information if the person reasonably believes that the use or disclosure is necessary for the purpose of preventing or lessening a serious threat to the safety, health or wellbeing of:

- (a) the public; or
- (b) one or more individuals.

64 Authorisation—consent

A person may use or disclose relevant information for a purpose if the entity to which the information relates has consented to the person using or disclosing the information for that purpose (whether the consent is express or implied).

65 Authorisation—disclosure to prescribed public health entities

Disclosure by Director-General

- (1) The Director-General may disclose relevant information to a prescribed public health entity for the purpose of assisting the entity to carry out a prescribed public health activity, if the conditions in subsections (4) and (5) are satisfied.

Disclosure by designated data service provider

- (2) A designated data service provider may disclose relevant information to a prescribed public health entity for the purpose of assisting the entity to carry out a prescribed public health activity, if the Director-General has, in writing, approved the disclosure.
- (3) The Director-General may approve a disclosure for the purposes of subsection (2) only if the conditions in subsections (4) and (5) are satisfied.

Conditions

- (4) The condition in this subsection is satisfied if the prescribed public health entity has given the Director-General an undertaking, in writing, to use or disclose the relevant information only where the use or disclosure is either:
 - (a) all of the following;
 - (i) in accordance with the undertaking;
 - (ii) in accordance with any principles determined under subsection (6);
 - (iii) reasonably necessary to carry out a prescribed public health activity specified in the undertaking; or
 - (b) otherwise authorised by this Part.
- (5) The condition in this subsection is satisfied if the Director-General is satisfied that either:
 - (a) the relevant information to be disclosed does not include any protected information; or
 - (b) only the minimum amount of protected information necessary to assist the entity to carry out a prescribed public health activity is disclosed.

Principles for use or disclosure by prescribed public health entity

- (6) The Director-General may, by legislative instrument, determine principles for the purposes of subparagraph (4)(a)(ii).

Section 66

66 Authorisation—use or disclosure by prescribed public health entities

- (1) This section applies to a prescribed public health entity that has been given information under subsection 65(1) or (2).
- (2) The prescribed public health entity, and any person employed or engaged by the entity, may use or disclose the information if the use or disclosure is:
 - (a) in the course of carrying out a prescribed public health activity specified in the undertaking for the purposes of subparagraph 65(4)(a)(iii); and
 - (b) in accordance with the undertaking.

67 Director-General may make data sharing declaration

- (1) The Director-General may, in writing, make a declaration (a *data sharing declaration*) under this subsection if the Director-General is satisfied that:
 - (a) there is a severe and immediate, or severe and unforeseen, threat to public health; and
 - (b) making the declaration is necessary to respond to the threat.

Matters covered by declaration

- (2) Without limiting subsection (1), a data sharing declaration must specify the following matters:
 - (a) the kinds of information to which the declaration applies;
 - (b) the extent (if any) to which the declaration applies to:
 - (i) personal information about any person (including a deceased person); or
 - (ii) information (including commercially sensitive information) the disclosure of which could reasonably be expected to found an action by an entity (other than the Commonwealth) for breach of a duty of confidence;
 - (c) the entity or class of entities that may collect, use or disclose the information in accordance with the declaration;
 - (d) the entity or class of entities that the information may be disclosed to in accordance with the declaration;

- (e) one or more permitted purposes of the collection, use or disclosure.

Specified permitted purposes

- (3) A permitted purpose specified for the purposes of paragraph (2)(e) must be a purpose that is directly related to preventing or reducing the threat to public health mentioned in paragraph (1)(a).
- (4) Without limiting subsection 33(3A) of the *Acts Interpretation Act 1901*, or any other provision of this Act, a data sharing declaration may provide differently for:
 - (a) different kinds of information; and
 - (b) different entities or classes of entities; and
 - (c) different permitted purposes.

Conditions

- (5) A data sharing declaration may specify a matter mentioned in subsection (2) subject to conditions.

Declaration is a legislative instrument

- (6) A data sharing declaration is a legislative instrument, but section 42 (disallowance) of the *Legislation Act 2003* does not apply to the declaration.

68 When data sharing declarations cease to be in force

A data sharing declaration ceases to be in force at the earliest of the following:

- (a) if a time at which the declaration will cease to be in force is specified in the declaration—at that time;
- (b) the time at which the declaration is repealed;
- (c) the start of the day after the end of the period of 12 months beginning on the day the declaration commences.

Section 69

69 Authorisation—data sharing declarations

At any time when a data sharing declaration is in force, an entity may collect, use or disclose information if:

- (a) the collection, use or disclosure is for a permitted purpose specified in the declaration; and
- (b) the information is of a kind specified in the declaration for the purposes of paragraph 67(2)(a); and
- (c) if the information is of a kind mentioned in paragraph 67(2)(b)—the declaration applies to the information; and
- (d) the entity is specified in the declaration, or is in a class of entities specified in the declaration, for the purposes of paragraph 67(2)(c); and
- (e) in the case of disclosure—the information is disclosed to an entity specified in the declaration, or an entity included in a class of entities specified in the declaration, for the purposes of paragraph 67(2)(d); and
- (f) if a matter mentioned in paragraph (a), (b), (c), (d) or (e) of this section is specified in the declaration subject to conditions—those conditions are satisfied.

70 Authorisations have effect despite any other law

- (1) A provision of this Division that authorises the collection, use or disclosure of information (an **authorisation provision**) has effect despite:
 - (a) any other written law of the Commonwealth or a State or Territory, whether enacted before or after the commencement of this Act; and
 - (b) any unwritten law of the Commonwealth or a State or Territory.
- (2) Despite subsection (1), an authorisation provision is subject to the designated secrecy laws.
- (3) To avoid doubt, subsection (1) does not prevent the *Privacy Act 1988* applying to the information mentioned in that subsection.

Note: An authorisation provision constitutes an authorisation for the purposes of the *Privacy Act 1988*, but personal information to which an authorisation provision applies is otherwise subject to that Act.

Division 4—Unauthorised use or disclosure of information

71 Unauthorised use or disclosure of protected information

Entrusted person

- (1) A person commits an offence if:
- (a) the person is, or has been, an entrusted person; and
 - (b) the person has obtained or generated information in the course of or for the purposes of:
 - (i) performing functions or duties, or exercising powers, under this Act; or
 - (ii) assisting another person to perform functions or duties, or exercise powers, under this Act; or
 - (iii) providing data services to the Director-General; or
 - (iv) receiving information given in accordance with a request or agreement under subsection 43(1) or a direction under subsection 45(1); and
 - (c) the information is protected information; and
 - (d) the person uses or discloses the information.

Penalty: Imprisonment for 2 years or 120 penalty units, or both.

- (2) A person commits an offence if:
- (a) the person is, or has been, an entrusted person; and
 - (b) the person has obtained information as a result of a disclosure under section 51 made for the purpose of assisting the person, or another person, to perform a function or duty, or exercise a power, under:
 - (i) the *National Health Security Act 2007*; or
 - (ii) the *National Occupational Respiratory Disease Registry Act 2023*; and
 - (c) the information is protected information; and
 - (d) the person uses or discloses the information.

Penalty: Imprisonment for 2 years or 120 penalty units, or both.

*Person employed or engaged by prescribed public health entity
that is a Commonwealth entity*

- (3) A person commits an offence if:
- (a) the person is not an entrusted person; and
 - (b) the person is employed or engaged (however described) by a prescribed public health entity to provide services to the prescribed public health entity; and
 - (c) the prescribed public health entity is a Commonwealth entity; and
 - (d) the person has obtained or generated information as a result of a use or disclosure of information authorised by this Act; and
 - (e) the information is protected information; and
 - (f) the person uses or discloses the information.

Penalty: Imprisonment for 2 years or 120 penalty units, or both.

*Person employed or engaged by prescribed public health entity
that is not a Commonwealth entity*

- (4) A person commits an offence if:
- (a) the person is not an entrusted person; and
 - (b) the person is employed or engaged (however described) by a prescribed public health entity to provide services to the prescribed public health entity; and
 - (c) the prescribed public health entity is not a Commonwealth entity; and
 - (d) the person has obtained or generated information as a result of a use or disclosure of information authorised by this Act; and
 - (e) the information is protected information; and
 - (f) the person uses or discloses the information.

Penalty: Imprisonment for 1 years or 60 penalty units, or both.

Section 71

Exception—good faith

- (5) Subsections (1) to (4) do not apply if the person uses or discloses the information in good faith:
- (a) in the purported performance of functions or duties, or the purported exercise of powers, under:
 - (i) this Act; or
 - (ii) the *Biosecurity Act 2015*; or
 - (iii) the *National Health Security Act 2007*; or
 - (iv) the *National Occupational Respiratory Disease Registry Act 2023*; or
 - (b) in assisting another person in the purported performance of the other person's functions or duties, or the purported exercise of the other person's powers, under an Act mentioned in paragraph (a).

Note: A defendant bears an evidential burden in relation to the matters in this subsection (see subsection 13.3(3) of the *Criminal Code*).

Exception—required or authorised by law

- (6) Subsections (1) to (4) do not apply if the use or disclosure of the information is required or authorised by:
- (a) this Act or another law of the Commonwealth; or
 - (b) a law of a State or Territory prescribed by the rules for the purposes of this paragraph.

Note: A defendant bears an evidential burden in relation to the matters in this subsection (see subsection 13.3(3) of the *Criminal Code*).

Division 5—Other matters

72 Compensation for acquisition of property

- (1) If the operation of this Part would result in an acquisition of property (within the meaning of paragraph 51(xxxi) of the Constitution) from a person otherwise than on just terms (within the meaning of that paragraph), the Commonwealth is liable to pay a reasonable amount of compensation to the person.
- (2) If the Commonwealth and the person do not agree on the amount of the compensation, the person may institute proceedings in the Federal Court of Australia or the Supreme Court of a State or Territory for the recovery from the Commonwealth of such reasonable amount of compensation as the court determines.

Part 5—Enforcement

Division 1—Introduction

73 Simplified outline of this Part

This Part contains provisions about enforcement. In particular, this Part provides for how civil penalty provisions in this Act are enforceable under the Regulatory Powers Act.

Division 2—Civil penalties

74 Civil penalty provisions

Enforceable civil penalty provisions

- (1) Each civil penalty provision of this Act is enforceable under Part 4 of the Regulatory Powers Act.

Note: Part 4 of the Regulatory Powers Act allows a civil penalty provision to be enforced by obtaining an order for a person to pay a pecuniary penalty for the contravention of the provision.

Authorised applicant

- (2) For the purposes of Part 4 of the Regulatory Powers Act, the Director-General is an authorised applicant in relation to the civil penalty provisions of this Act.

Relevant court

- (3) For the purposes of Part 4 of the Regulatory Powers Act, each of the following courts is a relevant court in relation to the civil penalty provisions of this Act:
- (a) the Federal Court of Australia;
 - (b) the Federal Circuit and Family Court of Australia (Division 2);
 - (c) a court of a State or Territory that has jurisdiction in relation to the matter.

Extension to external Territories

- (4) Part 4 of the Regulatory Powers Act, as that Part applies in relation to the civil penalty provisions of this Act, extends to every external Territory.

Section 74

Liability of Crown

- (5) Part 4 of the Regulatory Powers Act, as that Part applies in relation to the civil penalty provisions of this Act, does not make the Crown liable to a pecuniary penalty.

Part 6—Miscellaneous

75 Simplified outline of this Part

This Part deals with miscellaneous matters.

76 Delegation by the Director-General

- (1) The Director-General may, in writing, delegate to an SES employee, or acting SES employee, in the Centre all or any of the Director-General's functions, duties or powers under:
 - (a) this Act; or
 - (b) Part 4 of the Regulatory Powers Act in relation to the civil penalty provisions of this Act.

Note: Sections 34AA to 34A of the *Acts Interpretation Act 1901* contain provisions relating to delegations.

Exception

- (2) However, the Director-General must not delegate the Director-General's functions, duties or powers under:
 - (a) section 45 (direction to give information); or
 - (b) section 67 (data sharing declarations).

Directions to delegate

- (3) A person performing functions or duties or exercising powers under a delegation under subsection (1) must comply with any written directions of the Director-General under subsection (4).
- (4) The Director-General may, in writing, give directions for the purposes of subsection (3).

Section 77

77 Protection from liability etc.

Authorised collection, use or disclosure not an offence under other laws

- (1) Subject to subsection (2), a person does not commit an offence, and is not liable to any penalty, under any other enactment of the Commonwealth, or any enactment of a State or Territory, as a result of the person collecting, using or disclosing information in accordance with this Act.
- (2) Subsection (1) does not apply in relation to a designated secrecy law.

Authorised collection, use or disclosure does not result in liability for civil proceedings

- (3) A person is not liable to civil proceedings for loss, damage or injury of any kind suffered by another person as a result of the person collecting, using or disclosing information in accordance with this Act.

Authorised collection, use or disclosure does not contravene medical or other professional standards

- (4) A person does not contravene medical standards, or any other relevant professional standards, as a result of the person collecting, using or disclosing information in accordance with this Act.

77A Annual pandemic preparedness and climate reporting

The annual report prepared by the Director-General and given to the Minister under section 46 of the *Public Governance, Performance and Accountability Act 2013* for a period must include an assessment of the following in relation to the period (including as compared to any previous such periods):

- (a) Australia's pandemic preparedness;
- (b) the impacts of climate change on health for Australians.

78 Review of operation of Act

- (1) The Minister must cause a review to be undertaken of:
 - (a) the operation of this Act during the 5 year period beginning at the commencement of the Act; and
 - (b) the operation of this Act during each subsequent 5 year period.
- (2) The persons conducting the review must not be employed by the Centre.

Timing of review

- (3) The persons conducting the review must commence the review as soon as practicable after the end of the 5 year period to which the report relates.

Minister to be given report of review

- (4) The persons conducting the review must give the Minister a written report of the review as soon as possible after the review is completed.

Minister to table copy of report of review

- (5) The Minister must cause a copy of the report of the review to be tabled in each House of the Parliament within 15 sitting days of that House after the Minister receives the report.

79 Law relating to legal professional privilege not affected

This Act does not affect the law relating to legal professional privilege.

80 Rules

- (1) The Minister may, by legislative instrument, make rules prescribing matters:
 - (a) required or permitted by this Act to be prescribed; or
 - (b) necessary or convenient to be prescribed for carrying out or giving effect to this Act.
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Section 80

- (2) To avoid doubt, the rules may not do the following:
 - (a) create an offence or civil penalty;
 - (b) provide powers of:
 - (i) arrest or detention; or
 - (ii) entry, search or seizure;
 - (c) impose a tax;
 - (d) set an amount to be appropriated from the Consolidated Revenue Fund under an appropriation in this Act;
 - (e) directly amend the text of this Act.

*[Minister's second reading speech made in—
House of Representatives on 3 September 2025
Senate on 27 October 2025]*

(68/25)
